

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 02/27/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties
EMAIL THE DEPARTMENT at dept32@contracosta.courts.ca.gov to request argument and
SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

CourtCall will **NOT** be used by D32.

Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

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Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1>

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-00901
CASE NAME: SALEHOMOUM VS. BAHRAMI-DAGHIGH
*HEARING ON MOTION IN RE: SANCTIONS FOR FAILURE OF WADDINGTON TO OBEY RULES
FILED BY: SALEHOMOUM, MOJDEH
TENTATIVE RULING:

Continued to 3/13/15/9AM, D22, due to unavailability of Judge Joni Hiramoto, the judge to whom the case is assigned.

2. 9:00 AM CASE NUMBER: C22-00901

CASE NAME: SALEHOMOUM VS. BAHRAMI-DAGHIGH

*HEARING ON MOTION IN RE: MONETARY SANCTIONS FOR FAILURE OF OMID BAHRAMI TO OBEY RULES

FILED BY: SALEHOMOUM, MOJDEH

TENTATIVE RULING:

Continued to 3/13/15/9AM, D22, due to unavailability of Judge Joni Hiramoto, the judge to whom the case is assigned.

3. 9:00 AM CASE NUMBER: C24-01031

CASE NAME: MATTHEW JACKSON VS. PAR WESTERN LINE CONTRACTORS, LLC

HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO AMIEL J. PROVOSTY

FILED BY: PAR WESTERN LINE CONTRACTORS, LLC

TENTATIVE RULING:

Unopposed. GRANTED.

4. 9:00 AM CASE NUMBER: C24-03121

CASE NAME: MOLLY STAFFORD VS. CITY OF RICHMOND

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: CITY OF RICHMOND

TENTATIVE RULING:

Before the Court is Defendant City of Richmond's Demurrer to Plaintiff's Complaint.

For the following reasons, Defendant's Demurrer is **sustained**.

Allegations of Complaint

Plaintiff alleges that she was caused to fall due to a crack in the sidewalk located near the properties of 4140 Fran Way LLC, in Richmond, California. The fall injured Plaintiff. It is alleged that the sidewalk was owned and maintained by Defendant City of Richmond. The complaint asserts two causes of action: (1) Premises Liability, and (2) General Negligence.

Plaintiff filed her form complaint on November 19, 2024. "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days of after the filing of the complaint." (Cal. R. Ct. 3.110 (b).) "After a summons has been served on a person, proof of service of the summons ... **shall be filed**, unless the defendant has previously made a general appearance." (Code Civ. Proc. § 417.30.) The docket does not indicate that any proof of service of summons has been filed in this matter.

Defendant City of Richmond filed its demurrer on November 10, 2025.

Legal Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) "The function of a demurrer is to

test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) The Court treats the demurrer as admitting all material facts properly pleaded but disregards contentions, deductions, or conclusions of law. (*City of Atascadero v. Merrill Lynch, Pierce, Fenner, & Smith, Inc.* (1984) 68 Cal.App.4th 445, 459.)

A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP 430.40; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) In addition, the court will “accept as true both facts alleged in the text of the complaint and facts appearing in exhibits attached to it.” (*Mead v. Sanwa Bank California* (1998) 61 Cal.App.4th 561, 567.) “If the facts appearing in the attached exhibit contradict those expressly pleaded, those in the exhibit are given precedence.” (*Ibid.*)

Meet and Confer

Before filing a demurrer, the “demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer....” (Code of Civil Procedure §430.41(a). “The parties shall meet and confer at least 5 days before the date the responsive pleading is due.” (*Id.* at (a)(2).) The meet and confer shall be by phone or videoconference, if not in person. (*Id.* at (a).) The moving party is required to file a declaration regarding the meet and confer efforts and outcome. (*Id.* at (a)(3).)

The City’s declaration in support indicates that they prepared and sent a meet and confer email to Plaintiff’s counsel on April 13, 2025. (Gelini Decl. ¶ 3.) Plaintiff’s counsel responded on April 17, indicating that he would look into the issues and they would work something out. (*Id.* at ¶ 4.) When the City’s counsel did not hear back from Plaintiff’s counsel she “emailed again, and again and again,” and continued to get no response. (*Id.* at ¶ 6.) Given no response, the City filed the demurrer.

The City’s declaration verifies that Plaintiff’s counsel “failed to respond to the meet and confer,” and as such meets the requirements of section 430.41. As such, the Court will rule on the demurrer. The Court does, however, remind Plaintiff’s counsel that it has a duty to meet and confer with opposing counsel when faced with a demurrer or motion to strike. Failure to respond, especially after repeated efforts by the City’s counsel, is not acceptable.

Analysis

The City demurs to both causes of action for failure to state a claim because neither of the causes of action identify the statutory basis of liability against the City.

Under the California Tort Claims Act, a public entity is not liable for an injury arising from an act or omission except as provided by statute.” (*Creason v. Department of Health Services* (1998) 18 Cal.4th 623, 630.) “There is no common law governmental tort liability in California; and except as otherwise provided by statute, there is no liability on the part of a public entity for any act or omission of itself, a public employee, or any other person.” (*Gibson v. City of Pasadena* (1978) 83 Cal.App.3d 651, 655 quoting *Cowing v. City of Torrance* (1976) 60 Cal.App.3d 757, 761.)

“In order to state a cause of action for government tort liability, ‘every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty.’” (*Zuniga v. Housing Authority* (1995) 41 Cal.App.4th 82, 96.) “Since the duty of a governmental agency

can only be created by statute or 'enactment,' the statute or 'enactment' claimed to establish the duty must at the very least be identified.'" (*Ibid.* quoting *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 82 emphasis added.) The Complaint fails to identify any statutory basis for either of Plaintiff's claims.

In her opposition, Plaintiff argues that she properly alleges the elements of negligence for public employee liability for the dangerous condition of public property citing Government Code section 840.2. She also argues that there is a statutory basis for negligence liability under Government Code section 815.2, and that such liability is properly pled.

The problem with Plaintiff's arguments is that neither of these statutes is alleged in the complaint. In fact, there is no statutory claim or reference asserted anywhere in the complaint.

"[I]n California all government tort liability is dependent on the existence of an authorizing statute or 'enactment' [citations], and to state a cause of action every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty. [citation] Duty cannot be alleged simply by stating 'defendant had a duty under the law'; that is a conclusion of law, not an allegation of fact. The facts showing the existence of the claimed duty must be alleged. [citations] Since the duty of a governmental agency can only be created by statute or 'enactment,' the statute or 'enactment' claimed to establish the duty must at the very least be identified." (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802; see also, *County of Los Angeles v. Superior Court* (2024) 107 Cal.App.5th 160, 178 quoting *Searcy*; *Zuniga*, supra, 41 Cal.App.4th at 96, same.)

Conclusion

The City's demurrer is **sustained in full**. Plaintiff is granted leave to amend. Any amended complaint shall be filed within 14 days of entry of this order.

5. 9:00 AM CASE NUMBER: C25-00312
CASE NAME: LISA ROSS VS. WILLIAM & WILLIAM REAL ESTATE AUCTION
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: FASIG, KELSEY
TENTATIVE RULING:

The Demurrer of Defendants Williams & Williams Marketing Services, Inc. and Kelsey Fasig to Plaintiff Lisa Ross's First Amended Complaint is sustained in its entirety, with leave to amend. Defendants' motion to strike is denied as moot.

Defendants shall prepare the order and serve notice of entry of order. Plaintiff shall have 30 days from service of the order to file a Second Amended Complaint.

Background

On February 7, 2025, Plaintiff filed this action against named Defendants Williams & Williams Marketing Services, Inc. ("Williams"), Kelsey Fasig, Barrett Daffin Frappier Treder & Engel LLP and Nationstar Mortgage LLC ("Nationstar"). The subject of the complaint is a transaction in which

Williams advertised the property located at 4442 Deerfield Dr., Antioch, CA 94531 ("the Property") for auction on Williams' website and Plaintiff claim that she was the highest bidder for the Property on December 19, 2024. The Property was advertised at a foreclosure auction on October 2, 2024. On November 27, 2024, Defendant Nationstar bought the Property at the foreclosure sale. Defendants contend that on December 11, 2024, Nationstar listed the Property for sale by auction and a sale is now pending to a party other than Plaintiff. Plaintiff alleges, in sum, that Defendants violated Civil Code 2429m when Defendant Barrett did not accept her bid for the Property and convey title to her.

On October 6, 2025, Plaintiff filed a First Amended Complaint ("FAC") in response to a pending demurrer. The FAC asserts causes of action for (1) specific performance, (2) tortious interference with contract, (3) Violation of SB 1079 and AB 1837, (4) intentional misrepresentation, (5) negligent misrepresentation, (6) declaratory relief, (7) violation of the UCL, (8) injunctive relief, and (9) "damages." Defendants Williams and Fasig now demur to each cause of action in the FAC for failure to state a cause of action.

Defendants argue that Plaintiff's FAC fails to correctly identify the named defendants. Specifically, they argue that Plaintiff incorrectly refers to Williams & Williams Real Estate Auction as a defendant when the company's actual name is Williams and Williams Marketing Services Inc. They argue the FAC alternates between "Kelsy Fasig" and "Kelse Fasig" when Defendant's actual name is Kelsey Fasig. Defendants contend that Plaintiff refers to Barrett Daffin Frappier Treder & Weiss LLP, Barret Daffin Frappier Treder & Engell LLP, and Barrett Daffin Frappier Treder & Engell, LLP as parties, when the company's actual name is Barrett Daffin Frappier Treder & Engel, LLP. Defendants ask that the incorrect names be stricken from the FAC and Plaintiff be required to amend to refer to the parties consistently.

Legal Standards

A demurrer "tests the legal sufficiency of factual allegations in a complaint." (*Rakestraw v. Cal. Physicians' Service* (2000) 81 Cal.App.4th 39, 42.) Plaintiffs' well-pleaded facts are assumed to be true by the Court, but the Court does not assume the truth of contentions, deductions, or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

"Generally, it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment." (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.)

Request for Judicial Notice

Defendants' request for judicial notice of various filings in this case is granted, although it is not necessary to request judicial notice of documents in the case file. The Court does not judicially notice the truth of hearsay statements in the filed documents. (*Richtek USA, Inc. v. UPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.)

The First Cause of Action for Specific Performance

Plaintiff alleges that because she placed the high bid on the Property, an implied contract was formed on December 19, 2024. Defendants claim that Plaintiff cannot establish that they accepted her offer to purchase the Property because Plaintiff's own allegations concede that Defendants rejected

Plaintiff's bid and solicited a higher one, resulting in the conclusion that no contract was formed. (FAC at ¶¶ 29 & 49.) Defendants argue that because no contract was formed, specific performance is not a remedy that is available to the Plaintiff.

To establish the claim for specific performance, Plaintiff must prove breach of contract as well as the elements essential to grant the equitable remedy including: (1) the inadequacy of the legal remedy, (2) an underlying contract that is just, reasonable, and supported by adequate consideration; (3) contractual terms that are sufficiently definite to enable the court to know it would enforce, and (4) plaintiff's performance, tender, or excuse for nonperformance. (California Real Property Remedies and Damages, CEB, § 5.1.)

The elements for breach of contract cause of action are: (1) existence of contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach (or anticipatory breach); and (4) resulting damage. (*Wall Street Network, Ltd. v. N. Y. Times Co.* (2008) 164 Cal.App.4th 1171, 1178.)

Here, the Court agrees that Plaintiff does not sufficiently allege the formation or existence of a contract that required Nationstar to sell the Property to her as the highest bidder at the auction. As such, the demurrer is sustained with leave to amend.

The Second Cause of Action for Tortious Interference with Contract

Tortious Interference requires there to be (1) a valid contract between plaintiff and a third party; (2) defendant's knowledge of this contract, (3) defendant's intentional acts designed to induce a breach or disruption of the contractual relationship, (4) actual breach or disruption of the contractual relationship, and (5) resulting damage. (*Hahn v. Diaz-Barba* (2011) 194 Cal.App.4th 1177, 1196.)

"The tort of intentional interference with contractual relations is committed only by 'strangers—interlopers who have no legitimate interest in the scope or course of the contract's performance.' ... Consequently, a contracting party is incapable of interfering with the performance of his or her own contract and cannot be held liable in tort for conspiracy to interfere with his or her own contract." (*PM Group, Inc. v. Stewart* (2007) 154 Cal.App.4th 55, 65.) Agents of a party to the contract are also not liable for intentional interference. (See *Redfearn v. Trader Joe's Company* (2018) 20 Cal.App.5th 989, 1003.)

For a defendant to be liable for tortious interference, there must have been a contract between the plaintiff and a third party, not another party to the action or the party's agent. Plaintiff's FAC does not plead a contract between Plaintiff and a third party. Instead, Plaintiff alleges that Defendants were the ones who interfered with the contract by rejecting her bid. (FAC at ¶ 34.) That is a breach of contract, not interference with contract.

Additionally, in light of the Court's conclusion that the FAC does not sufficiently allege the existence of a contract, it is appropriate to sustain the demurrer to the second cause of action alleging interference with Plaintiff's contractual relations. The claim is not viable without an enforceable contract. (See *Bed, Bath & Beyond of La Jolla, Inc. v. La Jolla Village Square Venture Partners* (1997) 52 Cal.App.4th 867, 877-880.) Thus, the failure to plead the existence of an enforceable contract also bars this claim.

The Third Cause of Action for “Violation of SB 1079 & AB 1837”

The third cause of action alleges a violation of Civil Code section 2924m. Although the statute originated with SB 1079 and was later amended by AB 1837, the controlling law is section 2924m.

Generally, a trustee's sale (that is, a foreclosure sale) is deemed complete and final when the last and highest bid is accepted at the trustee's public auction of the property subject to foreclosure. However, California modified its nonjudicial foreclosure scheme as described above in 2020, in response to the COVID pandemic shutdown. (S. B. 1079, Cal. 2019-20 Reg. Sess. (eff. Jan. 1, 2021).) The concern was that residents, who had been ordered to shelter-in-place, would be displaced by opportunistic real estate investors in a wave of foreclosures upon nonpayment of outstanding loans. (See *Applegate v. Carrington Foreclosure Servs., LLC* (2025) 112 Cal. App. 5th 356, 360 [discussing legislative history of Civil Code § 2924m].) Under the 2924m, a trustee's sale is deemed final under Civil Code section 2924m(c)(1), without further required steps, only if the last and highest bidder at the trustee's sale is a “prospective owner-occupant.”

The requirements to qualify as a prospective owner-occupant are set forth in Civil Code § 2924m(a)(1) and require that the bidder must be a natural person, who will occupy the property as their primary residence and is not acting as the agent for any other person or entity. The high bidder has until 5 p.m. on the next business day following the auction to submit an affidavit or declaration to the trustee attesting that the bidder meets each of the prospective owner-occupant requirements set forth in Civil Code § 2924m(a)(1). (See Civil Code § 2924m(c)(1).) If the Sale Deed issued by the trustee is then recorded within 21 days of the auction, the sale is deemed perfected as of 8 a.m. on the date of the auction in accordance with Civil Code § 2924h(c).

If the highest bidder at the auction is not a “prospective owner-occupant,” then the provisions of Civil Code § 2924m(c)(2)-(4) determine finality. The foreclosure process is extended and certain categories of parties—“eligible tenant buyer” and “eligible bidder”—are allowed to submit overbids. Within 15 days of the auction date, any eligible tenant buyer or eligible bidder may submit to the trustee a bid or notice of intent to place a bid.

“Eligible tenant buyer,” defined in Civil Code § 2924m(a)(2), is not implicated here. An “eligible bidder” is broadly defined in the statute to include eligible tenant buyers, prospective owner-occupants, and certain designated nonprofit and governmental entities. (Civil Code § 2924m(a)(3).)

If an eligible bid or notice of intent to bid is not received within the 15-day window, then the sale is deemed final under Civil Code § 2924m(c)(2). If an eligible bid or notice of intent to bid is received, the provisions of Civil Code § 2924m(c)(3) and (4) are triggered. Under either of these provisions, a second window for action is opened, extending to 45 days after the auction.

Civil Code § 2924m(c)(3) allows all eligible tenant buyers acting together to submit a bid, in an amount equal to the highest bid at auction and be deemed the last and highest bid immediately upon the submission of their bid. Paragraph (4) allows any eligible bidder to submit an overbid, with the highest overbid received at the conclusion of the 45-day period deemed the last and highest bidder pursuant to the power of sale.

Thus, section 2924m establishes a two-step post-auction process where the highest bidder at the

auction is not a “prospective owner-occupant.” First, within 15 days after the auction, an eligible tenant buyer or eligible bidder must submit to the trustee an eligible bid or a notice of intent to place a bid. (Civ. Code, § 2924m(c)(2).) If no eligible bid or notice of intent to bid is received within that 15-day period, the sale is deemed final. (*Ibid.*) Only if a timely eligible bid or notice of intent to bid is received within the initial 15-day window are the extended procedures in subdivisions (c)(3) and (c)(4) implicated, which permit bidding activity through 45 days after the auction.

Here, Plaintiff alleges the trustee’s sale took place on November 27, 2024, and that she submitted an SB 1079 bid in the amount of \$356,500 on December 17, 2024. Plaintiff does not allege that she or anyone else submitted an eligible bid or notice of intent to bid within 15 days after the auction. Thus, on the face of the pleaded dates, Plaintiff’s December 17 bid occurred outside the 15-day period in § 2924m(c)(2), and the FAC does not allege facts showing the extended 45-day procedures were triggered.

The FAC’s allegation that Plaintiff “complied with all requirements” is a legal conclusion the court need not accept. The FAC pleads or incorporates the auction date and the bid date, and those dates show on their face that the bid was untimely, and the 45-day window was never triggered. The FAC therefore fails to state a claim under § 2924m.

Defendants assert that the foreclosure sale was final as of November 27, 2024, and Nationstar then advertised the Property for sale by auction on Williams’ website on December 17, 2024, such that the December sale by auction was not a foreclosure auction to which 2924m applies. They also argue that Plaintiff consented to Williams’ Terms of Sale when submitting her bid, including the following term: “Unless otherwise stated, all auctions are subject to court or seller approval.” Because these facts do not appear on the face of the FAC or any judicially noticeable matter, the Court does not consider them in ruling on the demurrer.

The demurrer to the third cause of action is sustained with leave to amend for Plaintiff to attempt to state a cognizable cause of action for violation of Civil Code section 2924m.

The Fourth and Fifth Causes of Action for Intentional and Negligent Misrepresentation

Defendants demur to the fourth and fifth causes of action for intentional and negligent misrepresentation on the grounds the complaint does not state facts sufficient to constitute a cause of action. The elements to establish a claim for deceit based on intentional misrepresentation are: (1) a misrepresentation; (2) knowledge of falsity; (3) intent to induce reliance; (4) actual and justifiable reliance; and (5) resulting damage. (*Chapman v. Skype Inc.* (2013) 220 Cal.App.4th 217, 231-232.)

The elements of a cause of action for negligent misrepresentation are the same as those for intentional misrepresentation except that it does not require knowledge of the falsity but instead requires a misrepresentation of fact by a person who has no reasonable grounds for believing it to be true. (*Id.* at 231.)

In her fourth cause of action for intentional misrepresentation, Plaintiff alleges she submitted a bid of \$365,000 on December 17, 2024, Defendant Fasig allegedly told Plaintiff she was not the sole bidder, on December 19, 2024, Fasig allegedly emailed plaintiff that she was the high bidder, and on December 23, 2024, Defendants rejected Plaintiff’s bid. Plaintiff alleges she relied on Fasig’s

statement that she was not the sole bidder by submitting an increased bid of \$390,000, which also was not accepted, and she alleges she suffered economic harm and “lost bidding rights.” (FAC ¶¶ 49-51.)

These allegations do not state a claim for fraud because the FAC does not plead a misrepresentation of fact that was false when made, nor does it allege facts showing Plaintiff took or refrained from taking any action in justifiable reliance that caused her damages in this case. The FAC does not explain what bidding rights were lost, or how any alleged misstatement caused that loss.

The fifth cause of action for negligent misrepresentation fares no better, Plaintiff’s theory appears to be that during a two-day SB 1079 bidding period she submitted an SB 1079 bid of \$356,500 and “strongly maintain[s]” she was the highest bidder because Defendants did not identify any higher SB 1079 bid. She alleges that on January 1, 2025, she followed up by email asking for a response and next steps. She then alleges that, based on the parties’ “conduct, actions and circumstances,” an implied-in-fact contract was formed “considering SB 1079 and AB 1837.” Finally, she alleges Defendants “in the form of concealment” negligently failed to respond, and that she “relied” on that concealment by believing she was the winning bidder and would proceed toward the sale process. (FAC ¶¶ 52-57.) As with the fraud cause of action, Plaintiff does not allege sufficient facts showing she did or refrained from doing something because of a false statement (or a duty-based nondisclosure), and that this reliance caused her damages in this case.

The demurrer to the fourth and fifth causes of action is sustained with leave to amend for Plaintiff to plead facts supporting each element of her misrepresentation claims.

The Sixth Through Ninth Causes of Action

The sixth through ninth causes of action for declaratory relief, UCL violation, injunctive relief, and the purported cause of action for “damages” are derivative of the substantive claims. Accordingly, because the Court sustains the demurrer with leave to amend as to the underlying causes of action, the demurrer is also sustained with leave to amend as to these derivative causes of action.

Motion to Strike

The Court, upon a party’s motion or upon its own, is authorized to “strike out any irrelevant, false, or improper matter inserted in any pleading” and to “strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. §436(a)-(b).)

Defendants move to strike any references to “Williams and Williams Real Estate Auction” and replace such references with “Williams and Williams Marketing Services Inc.” They also move to strike references to “Kelsy Fasig” and “Kelse Fasig” and replace them with “Kelsey Fasig,” and to strike references to “Barrett Daffin Frappier Treder & Weiss LLP” and replace them with “Barrett Daffin Frappier Treder & Engel, LLP.” (See Notice of Motion to Strike filed 11/10/25.)

The motion to strike is moot in light of the Court’s order sustaining the demurrer. However, Plaintiff should refer to the Defendants correctly and consistently in any amended pleading she files.

6. 9:00 AM CASE NUMBER: C25-00312
CASE NAME: LISA ROSS VS. WILLIAM & WILLIAM REAL ESTATE AUCTION
*HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT
FILED BY: FASIG, KELSEY
TENTATIVE RULING:

See Line 5.

7. 9:00 AM CASE NUMBER: C25-00641
CASE NAME: CYNTHIA NICKERSON VS. EPIC GAMES, INC.
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: EPIC GAMES, INC.
TENTATIVE RULING:

APPEARANCE REQUIRED BY COUNSEL REPRESENTING EACH PARTY – May appear remotely via ZOOM.

Counsel shall be prepared to inform this Court of **status** of the JCCP Coordination Proceedings, whether jurisdiction of all matters in this case lies with that Court or whether this Court retains jurisdiction over the present motion.

8. 9:00 AM CASE NUMBER: C25-01177
CASE NAME: NEDA VALIASHRAFI VS. MANSOUR AZIZI
HEARING ON DEMURRER TO: CROSS COMPLAINT
FILED BY: VALIASHRAFI, NEDA
TENTATIVE RULING:

The Demurrer to the Cross Complaint is SUSTAINED, for the reasons set forth in the Demurrer, as to the First, Second, Fourth, and Fifth, causes of action, **with 14 days leave TO AMEND each** of those causes of action of the Cross Complaint.

The Sixth, Seventh and Eighth Causes of Action titled “harrassment” “use of Fictitious names” and “Harrassment and Threats,” respectively, are not valid recognized causes of action under California law and are not separate causes of action. The Sixth, Seventh and Eight Causes of Action do not state causes of action and are, therefore **sustained WITHOUT LEAVE TO AMEND**, as pled. The conduct alleged, however, may be included/subsumed by other valid causes of action as damages or explanatory of conduct contained in other causes of action.

9. 9:00 AM CASE NUMBER: C25-02220
CASE NAME: MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC. VS. NANCY YEE
*HEARING ON MOTION IN RE: RECONSIDERATION
FILED BY: YEE, NANCY NGUYEN
TENTATIVE RULING:

Introduction

Before the Court is Defendant’s Nancy Nguyen Yee and Robert Frank Yee’s (Defendants) for

reconsideration and modification of the Court's Attorney Fee Award of \$3,660.00 entered in connection with the Court's Order Denying Defendants' Motion to Expunge Lis Pendens.

This motion is limited exclusively to the fee award under CCP §405.38 and does not challenge the Court's substantive ruling on expungement.

This motion is made on the grounds that (1) Defendants acted with substantial justification under §405.38, and (2) the fee award relied on factual assumptions that are now clarified, constituting "new and different facts or circumstances" under §1008.

For the following reasons, **Defendants' Motion for Reconsideration is denied.**

Request for Judicial Notice

Plaintiffs request judicial notice of three exhibits. Exhibit 1 is a copy of the subject Complaint filed on August 4, 2025. Exhibit 2 is a copy of the Declaration of Brandon J. Mika in Support of Opposition to Defendants' Motion to Expunge Lis Pendens. Exhibit 3 is a copy of the tentative ruling regarding Defendants' Motion to Expunge the Lis Pendens, issued by the Court on November 6, 2025.

All three exhibits are filings of this instant case and are subject to judicial notice because they are records of this court. (Evid. Code §452(d).) Plaintiff's requests for judicial notice of Exhibits 1 through 3 are granted.

Factual Background

Loan History

On or about June 23, 2022, Nancy Nguyen Yee and Robert Frank Yee, executed a deed of trust securing a promissory note against real property commonly known as 2246 Lake Crest Court Martinez, CA 94553 ("Property") for \$640,000 ("Loan") in favor of Mortgage Electronic Registration Systems, Inc., as beneficiary, as nominee for Champions Funding, LLC, its successors and assigns. The deed of trust was recorded in the Official Records of Contra Costa County on June 24, 2022, as Document No. 2022-010385 ("2022 Deed of Trust") (Complaint ¶15.) MERS is the current beneficiary of the 2022 Deed of Trust. (Complaint ¶16.) On or about May 1, 2024, Shellpoint took over servicing of the Loan secured by the 2022 Deed of Trust after the acquisition of Specialized Loan Servicing, LLC. (Complaint ¶17.) Shellpoint is the current servicer of the Loan secured by the 2022 Deed of Trust. (Complaint ¶18.)

Procedural Background

2024 Yee Litigation and Attempted Payoff

On or about February 23, 2024, Robert Frank Yee and Nancy Nguyen Yee filed a lawsuit in the Contra Costa County Superior Court, Case Number C24-00387 against Specialized Loan Servicing, LLC, alleging that the Parties had entered into an accord and satisfaction agreement because Defendants had secretly written "Payment in Full" on their monthly mortgage statement. (RJN Ex. 1.)

After multiple demurrers were sustained, Robert Frank Yee and Nancy Nguyen sent a check for \$619,004.83 along with a subsequent payment for \$5,203.03 to purportedly satisfy the remaining

loan balance. Following the alleged payoff, the Parties quickly resolved the lawsuit and on May 30, 2025, a dismissal of the entire action with prejudice was filed with the Court. (Complaint ¶19.) After Robert Frank Yee and Nancy Nugyen Yee purportedly paid the remaining loan balance in full to Shellpoint for the Loan secured by the 2022 Deed of Trust, on or about April 15, 2025, a Substitution of Trustee and Full Reconveyance was executed, purporting to reconvey the 2022 Deed of Trust. The Reconveyance was recorded in the Contra Costa County Recorder's Office on April 16, 2025, as Document Number 2025-0036152 ("Reconveyance"). (Complaint ¶20.)

On or about May 5, 2025, the checks paid by Robert Frank Yee and Nancy Nguyen Yee for \$619,004.83 and \$5,203.03 bounced for insufficient funds. As a result, the Loan was not satisfied. However, by the time the checks had bounced, the 2022 Deed of Trust had been reconveyed. (Complaint ¶21.)

The 2022 Deed of Trust was erroneously reconveyed following the fraudulent payoff that was returned for insufficient funds. At the time the 2022 Deed of Trust and promissory note were executed, the parties to the 2022 Deed of Trust intended for the 2022 Deed of Trust to be recorded as an encumbrance against the Subject Property until the subject Loan was fully paid off. The Loan secured by Plaintiffs' 2022 Deed of Trust has not been paid off. As a result, the 2022 Deed of Trust should not have been reconveyed. (Complaint ¶¶ 22-24.)

Since Reconveyance, Defendants have taken numerous actions to try and prevent Plaintiffs from reinstating the security, including but not limited to transferring the Property to a trust, entering a purported loan secured by a deed of trust, and encumbering the Property with a UCC Financing Statement. (Complaint ¶¶ 26-30.)

Legal Standard for Reconsideration

Code of Civil Procedure section 1008(a) provides that a party affected by a prior court order may, "based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order." (Cal. Code Civ. Proc. § 1008(a).) Such an application must be accompanied by an affidavit that states "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (*Ibid.*)

However, a trial court has inherent power to reconsider its own interim rulings even in the absence of a change in law or new or different facts or circumstances. (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227, 237; *Brown, Winfield & Canzoneri, Inc. v. Superior Court* (2010) 47 Cal.4th 1233, 1248 ("*Brown*").) "This authority derives from the judiciary's fundamental, constitutionally mandated function to resolve specific controversies between the parties." (*Brown*, 47 Cal.4th at 1248.)

Analysis

Attorney's Fees Under CCP 405.38

"The court shall direct the party prevailing on any motion under this chapter be awarded the reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of

attorney's fees and costs unjust." (Code Civ. Proc., § 405.38 (Deering).) "When a lis pendens is withdrawn while a motion to expunge is pending, a moving party is not automatically entitled to attorney fees, nor automatically denied attorney fees, under CCP § 405.38. Instead, based on the practical approach to the award of attorney fees, the trial court has the discretion to award attorney fees based on a determination of which party would have prevailed on the motion, and whether the lis pendens claimant acted with substantial justification in withdrawing the lis pendens, or whether, in light of all of the circumstances, the imposition of fees would otherwise be unjust." (*Castro v. Superior Court* (2004) 116 Cal.App.4th 1010.)

Defendants Meet and Confer Efforts

Defendants contend that they engaged in multiple communications with Plaintiffs' counsel before filing their Demurrer and related pleadings and that this clarification constitutes new and different facts. (Motion at p. 3: 12-14.)

Defendants took the Court's analysis out of context. The Court took note of Defendants' meet and confer efforts for the Demurrer, but Defendants artfully omit any meet and confer process for the Motion to Expunge Lis Pendens. The previous ruling simply notes that Defendants did not meet and confer, but Plaintiffs' counsel advised Defendants prior to filing their Opposition that the Motion was deficient and if it was not withdrawn and they were forced to file an opposition, they would be seeking their attorney's fees. (RJN Ex. 3 [citing RJN Ex. 2].) The Court is aware of both Parties' meet and confer efforts on the Demurrer and the Motion to Expunge Lis Pendens, and any of the meet and confer efforts discussed previously does not constitute new or different facts, law or circumstances. It is therefore not proper grounds to seek reconsideration.

Defendants' Substantial Justification Argument

Defendants argue that they acted with substantial justification because their motion relied on recorded public documents and Plaintiffs presented no admissible evidence in their opposition papers to Defendants' Motion to Expunge Lis Pendens. (See Motion at p. 2: 6-9; Robert Frank Yee Decl. ¶ 2.) The Court finds neither point persuasive.

First, Plaintiffs did present admissible evidence in the form references to its verified Complaint. Notably, "a plaintiff may rely on a verified complaint to oppose a motion to expunge a lis pendens." (*Coppinger v. Superior Court* (1982) 134 Cal.App.3d 883 [holding it would be unfair to hold Plaintiff to a higher standard, especially before discovery has begun].)

Second, although Defendants contend that they did rely on recorded public documents, giving them a reasonable basis to file the Motion to Expunge Lis Pendens, they did not once in their Motion explain Plaintiffs' allegations of the checks for \$619,004.83 along with a subsequent payment for \$5,203.03 that bounced on May 5, 2025. (Complaint ¶ 19.) Although Defendants argue substantial justification due to relying on recorded public documents the absence of explanation of the rescission of the reconveyance, Exhibit J to their RJN in Support of their Motion to Expunge Lis Pendens, is deafening. (Defendants' RJN ISO Motion to Expunge Lis Pendens ¶10.)

Conclusion

Based on the above, **Defendants' Motion for Reconsideration is denied.**

10. 9:00 AM CASE NUMBER: C25-02299
CASE NAME: SHANNON SMITH VS. CHRISTOPHER KMIEC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: KMIEC, CHRISTOPHER
TENTATIVE RULING:

VACATED

11. 9:00 AM CASE NUMBER: C25-02299
CASE NAME: SHANNON SMITH VS. CHRISTOPHER KMIEC
*HEARING ON MOTION IN RE: STRIKE
FILED BY: KMIEC, CHRISTOPHER
TENTATIVE RULING:

VACATED

12. 9:00 AM CASE NUMBER: L24-03719
CASE NAME: MIDLAND CREDIT MANAGEMENT INC. VS. TYISHA PAULK
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT
FILED BY: Tyisha Paulk
***TENTATIVE RULING**

DENIED. Defendant was advised by Minute Order issued by this Court on 11/14/25 that the same Motion to Set Aside Default presently before the Court required proof of service pursuant to CCP 1010 and CRC 3.111. The matter was continued to this present date to allow her to effect service on Plaintiff. She has once again failed to do so.

13. 9:00 AM CASE NUMBER: MSC19-02596
CASE NAME: DEBRA WALKER VS. TROY MARTINEZ
*HEARING ON MOTION IN RE: DISMISS FOR FAILURE TO BRING ACTION TO TRIAL
FILED BY: Troy Martinez, et al
TENTATIVE RULING:

The motion to dismiss, filed by defendants Troy Martinez and Normandie & Slauson, LLC is **granted**. Defendants shall prepare and circulate a proposed form of judgment, separate from any order on this motion, for submission to the Court.

Plaintiff Debra Walker filed this suit against defendants on December 11, 2019. The Court docket reflects multiple occasions on which counsel for both sides failed to appear or other delays occurred. In June of 2024 at a settlement conference with Judge Melissa O'Connell, parties represented that they had reached a settlement. The court minutes show no terms to which parties allegedly agreed. Plaintiff's attorney then reduced the agreement to a writing, which plaintiff signed in September of 2024. Defendants delayed in returning an executed copy. When defendants finally

returned the agreement, it contained changes. Defendants requested that *plaintiff* accept the changes by initialing and signing a copy of the “counteroffer.”

Plaintiff refused to accept the changes applied by defendants. Instead, she sent a new copy with different terms and noticed a site inspection and deposition of defendant Martinez. On March 5, 2025, defendants sent another “settlement offer” to plaintiff, which she did not sign. Notably, by May of 2025, there was no single document bearing both sides’ signatures, and neither plaintiff nor defendants were represented by the same counsel as at the June 2024 settlement conference. Plaintiff’s new counsel, Perry Popovich, told defendants’ new counsel, Rachel Doughty, that parties did not agree about the “payment form” and that plaintiff would be filing an amended complaint.

On August 26, 2025, a CMC was held and defendants stated an intention to file a motion to dismiss based on the five-year statute. Within a week, plaintiff filed a motion to enforce settlement pursuant to Code of Civil Procedure section 664.6(a). That motion was denied in December 2025.

Approximately two weeks after plaintiff filed her motion to enforce, the defendants filed the present motion to dismiss for delay in prosecution under both discretionary and mandatory standards. The hearing date was originally set for January 23, 2026. In an attempt to avoid further litigation, the defendants sought an order shortening time on this motion, but it was denied. The Court’s tentative ruling from January 23, 2026 cited “procedural errors” by both sides and continued the hearing date to allow the Court to consider the merits of plaintiff’s late-filed opposition, among other things. Neither party opposed the tentative ruling, which became the Court’s order. Accordingly, plaintiff’s opposition has been considered.

Discretionary Standard

The Court may use its discretion to dismiss an action if it has not been brought to trial, or “conditionally settled,” within two years after it was commenced against the defendant. (Code Civ. Proc. § 583.420(a)(2); Cal. Rules of Ct., Rule 3.1340.) A case is “conditionally settled” if and only if both of the following are true: (1) a settlement agreement conditions dismissal on the satisfactory completion of specified terms that are not to be fully performed within two years after the filing of the case, and (2) notice of the settlement is filed with the court under Cal. Rules of Ct., Rule 3.1385. (Cal. Rules of Ct., Rule 3.1340(a).)

Here, the action was also not brought to trial within two years. Further, there was no conditional settlement. Still, the Court declines to dismiss the case based on a discretionary standard.

Mandatory Standard

Code of Civil Procedure, § 583.310 requires an action to be “brought to trial within five years after the action is commenced against the defendant.” Code of Civil Procedure, § 583.360, subdivision (a) provides that “[a]n action shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties, if the action is not brought to trial within [five years].” Subdivision (b) clarifies that this requirement is “mandatory,” but subject to exceptions if provided by a statute.

In computing the time within which an action must be brought to trial, certain time periods are excluded, including when (1) jurisdiction of the court was suspended; (2) prosecution or trial was stayed or enjoined, or (3) bringing the action to trial, for any other reason, was impossible, impracticable, or futile. (Code Civ. Proc., § 583.340.)

“Because the purpose of the dismissal statute is to prevent avoidable delay, section 583.340, subdivision (c) makes allowance for circumstances beyond the plaintiff’s control, in which moving the

case to trial is impracticable for all practical purposes.” (*Seto v. Szeto* (2022) 86 Cal.App.5th 76, 85, citations omitted.) In determining if tolling exceptions apply under subdivision (c), the “trial court must consider all the circumstances of the individual case, including the acts and conduct of the parties and the nature of the proceedings themselves.” (*Id.* at 86, citation omitted.) The “trial court has discretion to determine whether that exception applies....” (*Bruns v. E-Commerce Exchange, Inc.* (2011) 51 Cal.4th 717, 731.)

The appropriate analysis focuses on the ‘justifiability’ of the plaintiff’s reason for not bringing the case to trial, rather than on the defendant’s “complicity in the delay.” (*Brunzell Constr. Co. v. Wagner* (1970) 2 Cal.3d 545, 555; see also *Tejada v. Blas* (1987) 196 Cal.App.3d 1335, 1339-1340 [critical factor in applying tolling exceptions to a given factual situation is whether the plaintiff exercised ‘reasonable diligence’ in prosecuting his or her case]; *Westinghouse Elec. Corp. v. Superior Court* (1983) 143 Cal.App.3d 95, 99 [“had plaintiff been the dilatory party, mere impracticability is not an excuse, since the impracticability arises from plaintiff’s own fault”].) The plaintiff bears the burden of proving that the circumstances warrant application of the exception. (*Seto, supra*, 86 Cal.App.5th at 86.)

This case was filed on December 11, 2019, which was approximately six years ago. The plaintiff reasonably believed she had procured a settlement on June 14, 2024 after parties appeared in Court for a settlement conference. Since no written agreement was signed by the parties, plaintiff reasonably needed additional time to prepare and finalize the details. Plaintiff signed the settlement agreement prepared by her attorney on September 1, 2024, but defendants delayed and eventually refused to sign the precise agreement provided by plaintiff. When defendants sent a changed (and signed) agreement back, plaintiff refused to accept it. Some further back and forth occurred and in April of 2025, plaintiff informed the Court and defendants of an intention to file a “Motion to Set Aside Unenforceable Settlement Order” and to amend the complaint.

The time during which plaintiff could be said to have reasonably believed there was a settlement was no more than eight months. This case has extended beyond six years. The settlement negotiation delay is insufficient to make this case timely.

With respect to the other considerations plaintiff argues should toll the five-year statute, they lack merit. Plaintiff argues the parties were at least equally dilatory in litigation, both sides missing appearances, but defendant missing more, etc. This misconstrues the showing necessary here, which is focused primarily on plaintiff’s conduct. Plaintiff also describes a straightforward case with strong evidence, but this factor weighs against delays being justified. Plaintiff argues that a settlement conference is tantamount to “mediation” such that tolling provisions related to submission to mediation apply. (See Memorandum of Points and Authorities in Support of Opposition, 4:17-21; 5:10-6:9.) This position lacks merit for the reasons described in the moving papers. (See Memorandum of Points and Authorities in Support of Motion, 8:9-10:19.)

While the Court acknowledges that defendants caused delay here, possibly in bad faith, the analysis must focus on plaintiff’s own diligence. The delays in this case have amounted to an unreasonable delay in prosecution and plaintiff has failed to meet her burden to demonstrate that bringing the action to trial “was impossible, impracticable, or futile.”

Dismissal is therefore mandatory.

14. 9:00 AM CASE NUMBER: MSC19-02596
CASE NAME: DEBRA WALKER VS. TROY MARTINEZ
***HEARING ON MOTION IN RE: DISMISS FOR FAILURE TO BRING ACTION TO TRIAL**
FILED BY:
TENTATIVE RULING:

Please see Line 13.

15. 9:00 AM CASE NUMBER: N25-2267
CASE NAME: PETITION OF:RAVI GANJOO
HEARING ON PETITION IN RE: PETITION FOR EXPUNGEMENT OF PUBLIC FINRA RECORDS OF RAVI GANJOO
FILED BY:
TENTATIVE RULING:

DENIED. Petitioner has failed to provide proof of service that the Petition was personally served on Respondent/Interested Party.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C24-02862
CASE NAME: DANIEL DESCALSO VS. JOHN CORBETT
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS BY PLAINTIFFS DANIEL AND JULIA DESCALSO TO DEFENDANTS JOHN CORBETT AND GILMAR SALVADOR**
FILED BY: Defendant
TENTATIVE RULING:

Granted. Amount of sanctions TBD.
Appearance required by attorney from each side who will actually be TRIAL COUNSEL. Plaintiff's attorney shall be prepared to explain how diametrically opposed responses to requests for admission can be considered valid responses sufficient to avoid sanctions in this case. In addition, no verification was attached to either set of responses.

17. 9:01 AM CASE NUMBER: C24-02862
CASE NAME: DANIEL DESCALSO VS. JOHN CORBETT
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS BY PLAINTIFFS DANIEL AND JULIA DESCALSO TO DEFENDANTS JOHN CORBETT AND GILMAR SALVADOR**
FILED BY: Defendant
TENTATIVE RULING:

Granted. Amount of sanctions TBD. Appearance required by attorney from each side who will

actually be TRIAL COUNSEL. Plaintiff's attorney shall be prepared to explain how diametrically opposed responses to requests for admission can be considered valid responses sufficient to avoid sanctions in this case. In addition, no verification was attached to either set of responses.

18. 9:01 AM CASE NUMBER: C24-02862
CASE NAME: DANIEL DESCALSO VS. JOHN CORBETT
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES**
FILED BY:
TENTATIVE RULING:

Granted. Amount of sanctions TBD. Appearance required by attorney from each side who will actually be TRIAL COUNSEL. Plaintiff's attorney shall be prepared to explain how diametrically opposed responses to requests for admission can be considered valid responses sufficient to avoid sanctions in this case. In addition, no verification was attached to either set of responses.